

Ashok Kumar v. State of U.P. — recovery of vendor's electricity dues

High Court of Judicature at Allahabad · Division Bench · 11 October 2018 · Writ-C No. 34633 of 2018 · Writ-C No. 34633 of 2018
· **Writ disposed; petitioner relegated to clause 6.5(b) objection.**

HEADNOTE

Where a recovery citation was issued against a subsequent purchaser for electricity dues said to relate to the vendor, the High Court, on the licensee's stand, disposed of the writ by granting liberty to file an objection under paragraph 6.5(b) of the U.P. Electricity Supply Code, 2005, to be decided by a speaking and reasoned order within a further four weeks, without expressing any opinion on merits.

FACTUAL SUMMARY

The petitioner purchased land in 2002 from Sri Badlu, son of Natthu. A recovery citation dated 10 August 2018 was issued against him for electricity dues that he said related to that vendor. He challenged the citation in a writ petition. The distribution licensee's counsel submitted that any objection to the demand could be filed under paragraph 6.5(b) of the U.P. Electricity Supply Code, 2005 and would be decided by a speaking order in a time-bound manner. The petition was heard finally without a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

objection-to-recovery-citation

HOLDING

On the licensee's stand that an objection to a recovery demand lies under paragraph 6.5(b) of the U.P. Electricity Supply Code, 2005, the writ was disposed of with liberty to file that objection within four weeks; the licensee was directed to decide it by a speaking and reasoned order within a further four weeks, the Court expressing no opinion on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR ELECTRICITY DUES OF THE PREVIOUS OWNER SRI BADLU

The Court expressly declined to express any opinion on the merits of the petitioner's claim. ¶ 1